

JASON M. BARBARA & ASSOCIATES, P.C.

EXHIBIT "C"

NYSCEF DOC. NO. 116

SHORT FORM ORDER

INDEX No. 600371/2021
CAL. No. 202400109OT

SUPREME COURT - STATE OF NEW YORK
I.A.S. PART 50 - SUFFOLK COUNTY

PRESENT:

Hon. FRANK A. TINARI
Justice of the Supreme Court

MOTION DATE 6/21/24
ADJ. DATE 9/23/25
Mot. Seq. # 003 MD
Mot. Seq. # 004 MD

-----X
DIANE C. DESOUSA and THOMAS E. DESOUSA,

Plaintiff,

- against -

RICHARD A. CALVAGNO II and PATRICK J. KARCHER,

Defendants.
-----X

JOHN N. CUOMO, ESQ.
Attorney for Plaintiff Diane DeSousa
11 Fern Drive
Commack, New York 11725

JASON M. BARBARA & ASSOCIATES, P.C.
Attorney for Defendant Richard A. Calvagno II
3 Dakota Drive, Suite 300
New Hyde Park, New York 11042

WARSHAW BURSTEIN, LLP
Attorney for Defendant Patrick J. Karcher
575 Lexington Avenue
New York, New York 10022

Upon the following papers read on these motions for summary judgment, etc.: Notice of Motion/Order to Show Cause and supporting papers by defendant Karcher, filed May 29, 2024; Notice of Motion and supporting papers by plaintiffs, filed May 31, 2024; Answering Affidavits and supporting papers by plaintiffs, filed June 20, 2024; by defendant Calvagno, filed June 19, 2024; Replying Affidavits and supporting papers by defendant Karcher, filed June 25, 2024; by plaintiffs, filed June 25, 2024; Other ; it is

ORDERED that these motions are consolidated for purposes of this determination; and it is

ORDERED that the motion by defendant Patrick J. Karcher for an order pursuant to CPLR 3212, granting summary judgment dismissing the complaint as against him, is denied; and is further

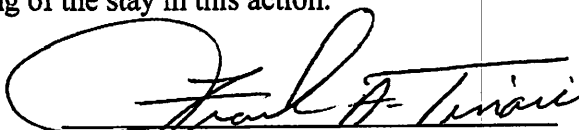
ORDERED that the motion by plaintiffs for, inter alia, an order pursuant to CPLR 3212, granting summary judgment dismissing the counterclaims interposed by defendant Richard A. Calvagno II, is denied.

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Where a party dies during the pendency of an action, such death divests the court of jurisdiction until a personal representative is appointed for the decedent's estate and is properly substituted in the action (see *Lee v Leeds, Morelli & Brown, P.C.*, 233 AD3d 1070, 224 NYS3d 478 [2d Dept 2024]; *Manto v Cerbone*, 71 AD3d 1099, 898 NYS2d 182 [2d Dept 2010]). Any determination rendered prior to such substitution generally will be deemed a nullity (*Singer v Riskin*, 32 AD3d 839, 821 NYS2d 120 [2d Dept 2006]). The death of a party also terminates an attorney's authority to act on behalf of the deceased client (see *Pierre v King*, 240 AD3d 531, 239 NYS3d 186 [2d Dept 2025]; *Vapnersh v Tabak*, 131 AD3d 472, 15 NYS3d 131 [2d Dept 2015]; *Hyman v Booth Mem. Hosp.*, 306 AD2d 438, 761 NYS3d 306 [2d Dept 2003]). Here, the court marked this action "stayed" on July 29, 2024, after having been advised of the death of Thomas E. DeSousa. To date, no substitution for the decedent has been effected.

Accordingly, the motion by defendant Patrick J. Karcher and the motion by plaintiffs are denied without prejudice to timely renewal upon the lifting of the stay in this action.

Dated: November 13, 2025



Frank A. Tinari, J.S.C.

____ FINAL DISPOSITION X NON-FINAL DISPOSITION

SHORT FORM ORDER

INDEX No. 600371/2021CAL. No. 202400109OTSUPREME COURT - STATE OF NEW YORK
I.A.S. PART 50 - SUFFOLK COUNTY**PRESENT:**Hon. FRANK A. TINARI
Justice of the Supreme CourtMOTION DATE 5/14/24ADJ. DATE 12/2/25

Mot. Seq. # 002 MD

-----X
DIANE C. DESOUSA and THOMAS E.
DESOUSA,

Plaintiff,

- against -

RICHARD A. CALVAGNO II and PATRICK J.
KARCHER,Defendants.
-----XJOHN N. CUOMO, ESQ.
Attorney for Plaintiff Diane DeSousa
11 Fern Drive
Commack, New York 11725JASON M. BARBARA & ASSOCIATES, P.C.
Attorney for Defendant Richard A. Calvagno II
3 Dakota Drive, Suite 300
New Hyde Park, New York 11042WARSHAW BURSTEIN, LLP
Attorney for Defendant Patrick J. Karcher
575 Lexington Avenue
New York, New York 10022

Upon the following papers read on this motion for summary judgment: Notice of Motion/Order to Show Cause and supporting papers by defendant Calvagno, filed April 19, 2024; Answering Affidavits and supporting papers by plaintiffs, filed June 19, 2024; Replying Affidavits and supporting papers by defendant Calvagno, filed June 26, 2024; Other ; it is

ORDERED that the motion by defendant Calvagno for an order, inter alia, pursuant to CPLR 3212, granting summary judgment dismissing the complaint as against him, is denied.

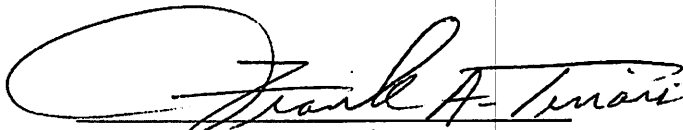
Where a party dies during the pendency of an action, such death divests the court of jurisdiction until a personal representative is appointed for the decedent's estate and is properly substituted in the action (*see Lee v Leeds, Morelli & Brown, P.C.*, 233 AD3d 1070, 224 NYS3d 478 [2d Dept 2024]; *Manto v Cerbone*, 71 AD3d 1099, 898 NYS2d 182 [2d Dept 2010]). Any determination rendered prior to such substitution generally will be deemed a nullity (*Singer v Riskin*, 32 AD3d 839, 821 NYS2d 120 [2d Dept 2006]). The death of a party also terminates an attorney's authority to act on behalf of the deceased client (*see Pierre v King*, 240 AD3d 531, 239 NYS3d 186 [2d Dept 2025]; *Vapnersh v Tabak*,

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Accordingly, the motion by defendant Calvagno is denied without prejudice to timely renewal upon the lifting of the stay in this action.

Dated: December 5, 2025


Frank A. Tinari, J.S.C.

____ FINAL DISPOSITION X NON-FINAL DISPOSITION